



PARTY MEDIATION QUESTIONNAIRE

NAME: _____

DATE: _____

OTHER PARTY'S NAME: _____

CASE OR MATTER (IF ANY): _____

PLEASE ANSWER THE FOLLOWING QUESTIONS IN YOUR OWN WORDS. THERE ARE NO RIGHT OR WRONG ANSWERS. THE PURPOSE IS TO HELP THE MEDIATOR UNDERSTAND THE DISPUTE AND WHAT YOU HOPE TO ACCOMPLISH.

1. WHAT IS THIS DISPUTE ABOUT?

(BRIEFLY DESCRIBE WHAT HAPPENED AND WHAT THE DISAGREEMENT IS)

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2. WHEN DID THE PROBLEM START?

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3. WHAT DO YOU BELIEVE THE OTHER PERSON DID WRONG, OR WHAT IS YOUR MAIN CONCERN?

4. WHAT DO YOU THINK YOU MAY HAVE DONE THAT CONTRIBUTED TO THE PROBLEM, IF ANYTHING?

5. HOW HAS THIS DISPUTE AFFECTED YOU?

(EMOTIONALLY, FINANCIALLY, PERSONALLY, OR OTHERWISE.)

6. WHAT DO YOU WANT TO HAPPEN AS A RESULT OF THIS MEDIATION?

7. WHAT WOULD A “GOOD OUTCOME” LOOK LIKE FOR YOU?

8. WHAT ARE YOUR MAIN GOALS FOR THE MEDIATION?

(CHECK ALL THAT APPLY OR EXPLAIN)

☐ **TO REACH A FINANCIAL SETTLEMENT**

☐ **TO RESOLVE MISUNDERSTANDINGS**

☐ **TO REPAIR OR IMPROVE THE RELATIONSHIP**

☐ **TO SET CLEAR BOUNDARIES OR RULES GOING FORWARD**

☐ **TO AVOID COURT**

☐ **OTHER:** _____

9. IS THERE ANYTHING YOU ABSOLUTELY NEED IN ORDER TO FEEL THE MEDIATION WAS FAIR?

10. IS THERE ANYTHING YOU ARE WILLING TO BE FLEXIBLE ABOUT?

11. IS THERE ANYTHING YOU ARE NOT WILLING TO AGREE TO UNDER ANY CIRCUMSTANCES?

12. IS THERE ANYTHING ELSE YOU WOULD LIKE THE MEDIATOR TO KNOW BEFORE THE SESSION?

Feel free to add additional pages as needed, and please make sure to indicate which number in the questionnaire each paragraph or entry corresponds to

I UNDERSTAND THAT THE MEDIATOR IS NEUTRAL AND DOES NOT REPRESENT EITHER PARTY OR GIVE LEGAL ADVICE.

SIGNATURE: _____

DATE: _____